

26CHCV01572 26CHCV01572

County: los-angeles

Division: Civil Law and Motion

Department: F43

Hearing date: 2026-09-16

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF43%2C09%2F16%2F2026

Source SHA-256: 1fc008b9446ce7eec44f8f4935ac7048b2005699f34750b6ab653e37b24fbfdb

Case Number: 26CHCV01572 Hearing Date: September 16, 2026 Dept: F43

Dept. F43

Hearing Date: 09-16-26

Case # 26CHCV01572, Cervantes v.

Zermeno, et al.

Trial Date: None set.

MOTION TO STRIKE

MOVING PARTIES: Defendants Adan Zermeno and the State of California, acting by and through the California Highway Patrol and California State Transportation Agency

RESPONDING PARTY: Plaintiff Daniel Cervantes

RELIEF REQUESTED

Order striking Complaint at page 4 ¶¶ MV-2a, MV-2b, MV-2c, MV-2d, MV-2f; page 5, ¶ GN-1.

RULING: Motion is granted with leave to amend.

SUMMARY OF ACTION

Plaintiff Daniel Cervantes (Plaintiff) filed

this personal injury action against defendants Adan Zermeno, California Highway

Patrol, California State Transportation Agency, and the State of California (State Defendants), asserting motor vehicle and negligence causes of action. Plaintiff alleges on August 7, 2025, he sustained serious injuries in an automobile collision when defendant Zermeno negligently drove a vehicle owned by defendants California Highway Patrol and California State Transportation Authority. The accident occurred in the course and scope of Mr. Zermeno's employment with defendants California Highway Patrol and California State Transportation Authority. Plaintiff asserts Mr. Zermeno violated Vehicle Code sections 21703 and 22350 and that Mr. Zermeno is liable pursuant to Government Code sections 815.2, 815.4, 820, and 835.

On June 26, 2026, defendants Adan Zermeno and the State Defendants filed the instant motion to strike various allegations from the Complaint: references to California Highway Patrol and California State Transportation Agency; references to Mr. Zermeno in the motor vehicle cause of action; references to the State of California's direct negligence in both causes of action; and reference to Government Code section 835. Defendants contend the allegations are not drawn in conformity with the laws of the state and are false, improper, and irrelevant.

On September 2, 2026, Plaintiff filed an opposition, asserting several of the supposed pleading defects are minor clerical artifacts of the Judicial Counsel form complaint. According to Plaintiff, the substantive allegations clearly establish Mr. Zermeno was operating the vehicle while acting within the scope of his employment. Furthermore, Plaintiff's negligence cause of action against the State Defendants rests on statutory vicarious liability pursuant to Vehicle Code sections 17001 and Government Code section 815.2. Plaintiff concedes the citation to Government Code section 835 was included inadvertently and agrees to remove the reference.

Defendants filed a reply on September 9, 2026.

MEET AND CONFER

Before filing a motion to strike, the parties must meet and confer "in person, by telephone, or by video conference," and the moving party must file a "meet and confer" declaration discussing the outcome of the meeting. (Code Civ. Proc., § 435.5, subd. (a)(3); see also Department F43 Courtroom Information, p. 2 ["meet and confer" does not mean emails and letters].)

The moving papers indicate defense counsel attempted to meet and confer with plaintiff's counsel twice by telephone to discuss the issues in counsel's meet and confer letter, but plaintiff's counsel never followed up with defense counsel.

(Declaration of Emily Williams ¶¶ 6-8, Exhs. A, B, C.)

ANALYSIS

A. Motion to Strike

"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof." (Code Civ. Proc., § 435.) A court may strike from the complaint any irrelevant, false, or improper matter.

(Code Civ. Proc., § 436, subd. (a).)

The court may also "[s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436, subd. (b); *Greshko v. County of Los Angeles* (1987) 194 Cal.App.3d 822, 830 [noting the court's inherent power to limit the focus of the proceedings to the issues framed by the remaining viable pleadings].) The court must read the factual allegations in the complaint as a whole and assume their truth. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc., § 437, subd. (a).)

Mr. Zermeno and the State Defendants move to strike the following from the Complaint:

.

"The defendants who operated a motor vehicle are . . . CALIFORNIA HIGHWAY PATROL, a public entity; CALIFORNIA STATE TRANSPORTATION AGENCY, a public entity and Does 1 . . ." (Compl. at p. 4, ¶ MV-2(a).)

.

"The defendants who employed the persons who

operated a motor vehicle in the course of their employment are . . . ADAN ZERMENO, an Individual . . .” (Compl. at p. 4, ¶ MV-2(b).)

.

“The defendants who owned the motor vehicle which was operated with their permission are . . . ADAN ZERMENO, an Individual . . .” (Compl. at p. 4, ¶ MV-2(c).)

.

“The defendants who entrusted the motor vehicle are . . . ADAN ZERMENO, an Individual . . .” (Compl. at p. 4, ¶ MV-2(d).)

.

“Defendants, and each of them, who negligently and carelessly serviced, repaired, maintained and/or inspected Defendants’ vehicle, legally causing the injuries herein above described are . . . CALIFORNIA HIGHWAY PATROL, a public entity; CALIFORNIA STATE TRANSPORTATION AGENCY, a public entity and Does 1 . . .” (Compl. at p. 4, ¶ MV-2(f).)

.

“At said time and place, Defendants, and each of them, so negligently owned, maintained, operated, entrusted, and/or drove a motor vehicle so as to cause injuries and damages to Plaintiff. Plaintiff was injured and sustained damages as a direct legal cause of Defendants’ negligence and but for the negligence of Defendants, and each of them, Plaintiff would not have been injured and sustained damages.” (Compl. at p. 5, ¶ GN-1.)

.

“Defendants negligently hired, trained, managed, directed, instructed and/or supervised their agents and/or employees[.]” (Compl. at p. 5, ¶ GN-1.); and

.

“Defendant, Adan Zermeno is liable to Plaintiff pursuant to, among other statutes, Government Code sections . . . 835.” (Compl. at p. 5, ¶ GN-1.)

Under California’s Government Claims Act, public entities are immunized “from liability for injuries arising from its acts or omissions

except as provided by statute.” (Whooley v. Tamalpais Union High School District (N.D. Cal. 2019) 399 F.Supp.3d 986, 1000 [citing Gov. Code, § 815, subd. (a)]; see also Williams v. Horvath (1976) 16 Cal.3d 834, 838 [noting the Legislature’s intent to “confine potential governmental liability to rigidly delineated circumstances”].)

Pursuant to Section 815.2, a public entity, is “vicariously liable for injuries proximately caused by the negligence of school personnel responsible for student supervision on school grounds.” (Whooley, supra, 399 F.Supp.3d at p. 1000; see Gov. Code, § 815.2, subd. (a) [including acts or omissions that occur within the scope of the employee’s “employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.”]; see also Gov. Code, § 815.4 [mirroring similar language for independent contractors]; Zelig v. County of Los Angeles (2002) 27 Cal.4th 1113, 1127; see also Gov. Code, §§ 815, 815.2, 820, subd. (a).)

1. The

First Cause of Action’s allegations are confusing and contain no statutory support for direct or vicarious liability against the State Defendants.

As alleged, Plaintiff’s First Cause of Action (Motor Vehicle) attempts to hold the State Defendants directly liable for defendant Zermeno’s conduct by alleging Zermeno’s conduct was also performed by California Highway Patrol, California State Transportation Agency, and Doe 1 (State of California): all defendants operated the vehicle involved in the accident; all defendants employed each other; the vehicle was operated by all defendants; all defendants entrusted the vehicle to each other; and all defendants are liable to Plaintiff based on their negligent conduct. (Compl. at p. 4, MV-2(a)-(d), (f).) Moreover, Plaintiff fails to cite a statutory basis for direct liability or vicarious liability against the public entities under this cause of action.

Thus, the court strikes the following from the First Cause of Action:

.

MV-2(a): “California Highway Patrol, a public

entity; California State Transportation Agency, a public entity and Doe 1”;

.

MV-2(b): “Adan Zermeno, an Individual”;

.

MV-2(c): “Adan
Zermeno, an Individual”;

.

MV-2(d): “Adan Zermeno, an Individual”; and

.

MV-2(f):

“Defendants, and each of them, who negligently and carelessly serviced,
repaired, maintained and/or inspected Defendants' vehicle, legally causing the
injuries herein above described are Adan Zermeno, an Individual; California
Highway Patrol, a public entity; California State Transportation Agency, a
public entity and Doe 1.”

2. The

Second Cause of Action's allegations improperly allege direct liability ability
Mr. Zermeno and fail to state a statutory basis for direct or vicarious
liability against the State Defendants.

As for the Second Cause of Action (General Negligence),

Plaintiff concedes that he inadvertently cited Government Code section 835 when
alleging direct liability against defendant Zermeno. Under Section 835, “a public entity is liable
for injury caused by a dangerous condition of its property if the plaintiff
establishes that the property was in a dangerous condition at the time of the
injury, that the injury was proximately caused by the dangerous condition, that
the dangerous condition created a reasonably foreseeable risk of the kind of
injury which was incurred, and that either:

(a) A negligent or wrongful act or omission of an employee of the public
entity within the scope of his employment created the dangerous condition; or

(b) the public entity had actual or constructive notice of the dangerous
condition under Section 835.2 a sufficient time prior to the injury to have

taken measures to protect against the dangerous condition.” (Gov. Code, § 835, subds. (a)-(b).) A dangerous condition of
property “creates a

substantial . . . risk of injury when such property or adjacent property is

used with due care in a manner in which it is reasonably foreseeable that it will be used.” (Gov. Code, § 830, subd.

(a).) Because Plaintiff concedes to this error, the court strikes the allegation that “Defendant, Adan Zermeno is liable to Plaintiff pursuant to, among other statutes, Government Code sections . . . 835.” (Compl. at p. 5, ¶ GN-1.)

Plaintiff also confusingly alleges each defendant “negligently owned, maintained, operated, entrusted, and/or drove a motor vehicle” and that “Plaintiff was injured and sustained damages as a direct legal cause of Defendants’ negligence.”

(Compl. at p. 5, ¶ GN-1.)

However, Plaintiff appears to allege the cause of action solely against defendant Zermeno and fails to cite a valid statutory basis for direct liability against the State Defendants.

In his opposition, Plaintiff contends liability against the “State Defendants” is based on vicarious liability through Vehicle Code section 17001 and that he can amend the complaint to reflect this statutory provision. (Opp. at pp. 4:28-5:8.) “A public entity is liable for death or

injury to person or property proximately caused by a negligent or wrongful act or omission in the operation of any motor vehicle by an employee of the public entity acting within the scope of his employment.” (Veh. Code, § 17001.) Although Section 17001 provides a form of vicarious liability against a public entity for a public employee’s negligent conduct, Plaintiff must amend the complaint to clarify that he alleges his Second Cause of Action against the State Defendants based on a vicarious liability theory rather than a direct liability theory. (See *August v. Golden Empire Transit Dist.* (2025) 115 Cal.App.5th 426, 441.)

Thus, the court strikes the following from the Second Cause of Action:

“Defendants negligently hired, trained, managed, directed, instructed and/or supervised their agents and/or employees[.]” (Compl. at p. 5, ¶ GN-1.);

“At said time and place, Defendants, and each of them, so negligently owned, maintained, operated, entrusted, and/or drove a motor vehicle so as to cause injuries and damages to Plaintiff. Plaintiff was injured and sustained damages

as a direct legal cause of Defendants' negligence and but for the negligence of Defendants, and each of them, Plaintiff would not have been injured and sustained damages." (Compl. at p. 5, ¶ GN-1.); and

.

"Defendant, Adan Zermeno is liable to Plaintiff pursuant to, among other statutes, Government Code sections . . . 835." (Compl. at p. 5, ¶ GN-1.)

Defendants' motion to strike is granted with leave to amend.

CONCLUSION and ORDER

The court grants Defendants' motion to strike with leave to amend.

The court strikes the following from the Complaint:

.

Compl. at p. 4, MV-2(a): "California Highway Patrol, a public entity; California State Transportation Agency, a public entity and Doe 1";

.

Compl. at p. 4, MV-2(b): "Adan Zermeno, an Individual";

.

Compl. at p. 4, MV-2(c): "Adan Zermeno, an Individual";

.

Compl. at p. 4, MV-2(d): "Adan Zermeno, an Individual";

.

Compl. at p. 4, MV-2(f): "Defendants, and each of them, who negligently and carelessly serviced, repaired, maintained and/or inspected Defendants' vehicle, legally causing the injuries herein above described are Adan Zermeno, an Individual; California Highway Patrol, a public entity; California State Transportation Agency, a public entity and Doe 1."

.
Compl. at p. 5, GN-1: "Defendants negligently hired, trained,
managed, directed, instructed and/or supervised their agents and/or employees";

.
Compl. at p. 5, GN-1: "At said time and place, Defendants, and each
of them, so negligently owned, maintained, operated, entrusted, and/or drove a
motor vehicle so as to cause injuries and damages to Plaintiff. Plaintiff was injured and sustained damages
as a direct legal cause of Defendants' negligence and but for the negligence of
Defendants, and each of them, Plaintiff would not have been injured and
sustained damages."; and

.
Compl. at p. 5, GN-1: "Defendant, Adan Zermeno is liable to
Plaintiff pursuant to, among other statutes, Government Code sections . . .
835."

Plaintiff may file and serve an amended
complaint within thirty (30) days of the issuing of this order.

Defendants to give notice.